



RE: URGENT APPLICATION - MATTHEE v AFROCENTRIC HEALTH & OTHERS

8 messages

Wilbur William Matthee <info@ethichawks.co.za>
To: Flsmail@judiciary.org.za

Fri, 06 Mar 2026 at 15:02

Dear Ms. Ismail,

I am writing to follow up on my urgent filing submitted, 5 March 2026, for manual loading via the Labour Court online portal.

Portal credentials provided:
Email: info@ethichawks.co.za
Password: Goth-boy89

Brief matter description:

BCEA s77A application - unlawful salary deduction (40.47%) - urgent interim relief sought due to current destitution (no running water, facing eviction end of March 2026).

I would be most grateful if you could confirm:
Receipt of the Notice of Motion and supporting documents;

Whether any additional information or documentation is required from my side.

The urgency of this matter arises from the fact that I am currently living without running water and facing imminent eviction. The Notice of Motion requests interim relief (payment within 72 hours of service to prevent homelessness) which I can only activate once I have the case number to serve on the Respondents.

I apologize for the follow-up and understand that the Registrar's office is managing many matters. Any guidance you can provide on timing would be greatly appreciated so I can prepare for immediate service upon receipt of the case number.

Thank you for your patience and assistance.

Yours faithfully,

Wilbur William Matthee
Applicant in Person



Farzaana Ismail <Flsmail@judiciary.org.za>
To: Wilbur William Matthee <info@ethichawks.co.za>
Cc: Tsakani Soundy <TSoundy@judiciary.org.za>

Mon, 09 Mar 2026 at 08:28

Dear Sir

I will follow up and let you know.

Regards

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Disclaimer:

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Wilbur William Matthee <info@ethichawks.co.za>
To: Farzaana Ismail <Flsmail@judiciary.org.za>
Cc: Tsakani Soundy <TSoundy@judiciary.org.za>

Mon, 09 Mar 2026 at 15:22

Dear Ms Ismail,

Thank you for your response. I confirm receipt and look forward to your follow-up communication.

Should you require any additional documents or information to process my application, please do not hesitate to contact me at this email address or on 069 635 1435.

Kind regards,



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 **image001.png**
205 KB

Wilbur William Matthee <info@ethichawks.co.za>
To: Farzaana Ismail <Flsmail@judiciary.org.za>
Cc: Tsakani Soundy <TSoundy@judiciary.org.za>

Wed, 11 Mar 2026 at 12:12

Dear Ms. Ismail,

I hope this email finds you well.

I am writing to follow up once more on the status of my urgent application (MATTHEE v AFROCENTRIC HEALTH & OTHERS), which was manually filed on 5 March 2026.

I understand and appreciate that the Labour Court is managing a significant backlog. However, the urgency of my situation has unfortunately become even more critical, as I am now facing imminent eviction at the end of this month.

The case number is essential for me to formally serve the Respondents and activate the requested interim relief, which is necessary to prevent homelessness.

Any update or guidance you can provide on the status of the case number would be greatly appreciated so I can take the necessary next steps.

Thank you for your time and continued assistance.

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Tsakani Soundy <TSoundy@judiciary.org.za>
To: Wilbur William Matthee <info@ethichawks.co.za>
Cc: Farzaana Ismail <Flsmail@judiciary.org.za>

Wed, 11 Mar 2026 at 12:40

Good day

Please provide me with your contact details

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Farzaana Ismail <Flsmail@judiciary.org.za>
To: Wilbur William Matthee <info@ethichawks.co.za>
Cc: Tsakani Soundy <TSoundy@judiciary.org.za>

Wed, 11 M

Dear Sir

I have had a look at your papers, I wanted to enquire , have you been to the CCMA or Bargaining council ? do you have an outcome ?

Regards



From: Wilbur William Matthee <info@ethichawks.co.za>

Sent: Monday, 09 March 2026 15:22

To: Farzaana Ismail <Flsmail@judiciary.org.za>

Cc: Tsakani Soundy <TSoundy@judiciary.org.za>

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Wilbur William Matthee <info@ethichawks.co.za>
To: Farzaana Ismail <Flsmail@judiciary.org.za>
Cc: Tsakani Soundy <TSoundy@judiciary.org.za>

Wed, 11 Mar 2026 at 17:06

Dear Ms. Ismail,

I confirm that I have attended the CCMA/Bargaining Council, and I have two certificates of non-resolution regarding this matter. Please find both certificates attached for your review.

Kind regards,

Wilbur William Matthee

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2 attachments

-  **image001.png**
205 KB
-  **K1: Certificate of Non-Resolution (Outcome).jpg**
1,3 MB

Wilbur William Matthee <info@ethichawks.co.za>
To: Farzaana Ismail <Flsmail@judiciary.org.za>
Cc: Tsakani Soundy <TSoundy@judiciary.org.za>

Thu, 12 Mar 2026 at 14:01

Dear Ms Ismail,

Thank you for your follow-up. I write to clarify one point directly.

This application is brought under section 77A read with section 77(3) of the BCEA for enforcement of section 34(2) — recovery of an unlawful salary deduction. A section 77A BCEA claim has no CCMA pre-referral requirement. The Labour Court has original jurisdiction. This is distinct from LRA unfair labour practice disputes, which do require CCMA certification.

The two Certificates of Non-Resolution already submitted (WECT23564-25 and WECT24486-25) evidence the history of the dispute. They are not submitted as a jurisdictional gateway — because none exists for this claim.

I am currently facing imminent eviction, water disconnection, and loan shark debt — all direct consequences of the unlawful deduction that is the subject of this application. The interim relief of R14,811.77 is urgent precisely to prevent irreversible harm.

I respectfully request that a case number be issued without further delay and the matter placed before a judge for the urgent interim relief application.

PLEASE TAKE FORMAL NOTICE that the continued failure to issue a case number in circumstances where the jurisdictional basis is clear, the urgency is documented, and the Applicant faces imminent homelessness, constitutes an obstruction of access to justice. This correspondence and all delays to date will be placed before the presiding judge and recorded as relevant circumstances in these proceedings. If a case number is not issued by close of business today, I will escalate this matter directly to the Office of the Judge President.

Sincerely,

Wilbur William Matthee

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